CRISPEN GOMORE

And

THE STATE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 1 JULY 2026

Application for leave to appeal

NDUNA J: The applicant or the accused person appeared before the court facing one count of murder in that it was alleged the accused had caused the death of the deceased as defined in Section 47(1) (a) of the Criminal Law(Codification & Reform) Act [Chapter 9:23]. Applicant was convicted of Culpable Homicide following a trial on 29th of May 2026. The Applicant was sentenced to 10 years' imprisonment. He has accordingly approached the court praying for leave to appeal against both conviction and sentence. The state opposes the application. Both parties have extensively filed their papers and the court feels a decision can be made on the papers filed of record.

The Applicant submits that the court erred when it returned a verdict of guilty in a number of instances. It is however to the net effect that the court erred in convicting the Applicant as there was no competent evidence on record upon which the conviction is based.

It is further submitted that the court erred in sentencing the applicant to ten years imprisonment as the sentence induces a sense of shock.

The state opposes the application. The state argues that the conviction is proper and sentence does not induce a sense of shock.

The traditional test applied by the courts in determining applications for leave to appeal is whether there is a reasonable prospect that another court may arrive at a conclusion different from that reached by the court *a quo*. With regard to the meaning

of reasonable prospects of success it was held in *S v Smith 2012 (1) SACR 567 (SCA) 570, at para 7*, as follows:

> "What the test of reasonable prospects of success postulates is a dispassionate decision, based on the fact and the law; that a court of appeal could reasonably arrive at a conclusion different to that of the trial court. In order to succeed, therefore, the appellant must convince this court on proper grounds that he has prospects of success on appeal and that those prospects are not remote but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case cannot be categorised as hopeless. There must in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal."

The procedure for leave to appeal serves to ensure that the appellate process is not abused and that only meritorious cases proceed on appeal. Accordingly, and based on the foregoing, I consider this application on the basis that leave should be granted only where the Applicant demonstrates reasonable prospects of success, or where there are other compelling reasons why the appeal ought to be heard.

In the present matter, the Applicant does not deny assaulting the deceased. Rather, he contends that the assault formed part of a religious treatment or healing ritual. However, the Post Mortem Report, admitted as Exhibit 1 and compiled by pathologist Dr. Juana Rodriguez Gregori, concludes that the cause of death was encephalic contusion, cranial trauma, and assault. The medical evidence unequivocally establishes that the assault was the direct cause of the deceased's death.

The Applicant's explanation as to the purpose of the assault does not displace the objective medical findings or undermine the conclusion reached by this court. In the circumstances, the contention that another court may arrive at a different conclusion is not founded on any sound factual or legal basis. There are no reasonable prospects that an appellate court would interfere with the conviction. Accordingly, leave to appeal against conviction is refused.

The sentence imposed is appropriate in this case. The sentencing provision for culpable homicide is found in the Criminal Law (Codification and Reform) Act [Chapter 9:23] under section 49, which provides:

49 Culpable homicide

Any person who causes the death of another person—

(a) negligently failing to realise that death may result from his or her conduct; or

(b) realising that death may result from his or her conduct and negligently failing to guard against that possibility;

shall be guilty of culpable homicide and liable to imprisonment for life or any definite period of imprisonment or a fine up to or exceeding level fourteen or both

In this case the court imposed a sentence of 10 years. It is clear that the sentence imposed is within the range of the sentence prescribed for the offence. The court took into account that the life was lost and a message had to be send out that culpable homicide is a very serious offence.

I accordingly refuse the leave to appeal in this case.

Teererai Legal Practice, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners